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Case Number: 25STCV22515 Hearing Date: August 5, 2026 Dept: 224

Marshall v. Ralphs Grocery Company et al.,

TENTATIVE RULING

Defendants Ralphs Grocery Company and The Kroger Company's demurrer is SUSTAINED with leave to amend as to Plaintiff's first, second, third, and fifth causes of action. Plaintiff is ordered to file a first amended complaint within 30 days of this Order.

The Case Management Conference is Continued to December 1, 2026 at 8:30 a.m.

Moving defendants to give notice.

ANALYSIS

I. INTRODUCTION

Plaintiff Juan Marshall (Plaintiff) filed his complaint in this action on July 30, 2025 against defendants Ralphs Grocery Company (Ralphs), The Kroger Co. (Kroger), Guardian International Solutions Inc. (Guardian), and John Doe (Doe), asserting claims for (1) assault, (2) battery, (3) intentional infliction of emotional distress, (4) negligence, and (5) negligent hiring, supervision, and retention.

Plaintiff alleges he was shopping at a grocery store owned and/or operated by Ralphs and Kroger on August 1, 2023, when Doe, a security guard employed for the store by Ralphs, Kroger, and Guardian, assaulted Plaintiff without provocation.

Ralphs and Kroger (Defendants) demur to Plaintiff's whole complaint for uncertainty and specifically to his first, second, third, and fifth causes of action for failure to state a claim.

Plaintiff opposes.

II. LEGAL STANDARD

Where pleadings are defective, a party may raise the defect by way of a demurrer. (Coyne v. Krempels (1950) 36 Cal.2d 257, 262.) A demurrer for sufficiency tests whether the complaint alleges facts sufficient to constitute a cause of action. (Cal. Code Civ. Proc. § 430.10; Young v. Gannon (2002) 97 Cal.App.4th 209, 220.) When considering a demurrer, a court reads the allegations stated in the challenged pleading liberally and in context, and “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) Put differently: for purposes of demurrer, the court treats all facts alleged – but only the facts alleged – in the complaint as true. (Picton v. Anderson Union High School District (1996) 50 Cal.App.4th 726, 732.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

III. MEETING AND CONFERENCE

Defendants’ counsel submits a declaration establishing Defendants complied with Code of Civil Procedure section 430.41. (See Gorokhovsky Decl., ¶¶ 5-7 and Exh. B [meeting and conference by telephone and followup letter].)

IV. DISCUSSION

A. First and Second Causes of Action for Assault and Battery

Plaintiff contends it may hold Defendants liable for Doe’s assault and battery via the doctrine of respondeat superior. Defendants contend Plaintiff has not pled sufficient facts for him to do so.

Respondeat superior does not impose strict liability on an employer for all of its employees’ actions. (Jeewarat v. Warner Bros Entertainment, Inc. (2009) 177 Cal.App.4th 427, 435.) “An essential element of respondeat superior is a causal nexus or reasonable relationship between the duties of employment and the conduct causing injury.” (Baptist v. Robinson (2006) 143 Cal.App.4th 151, 161-162.) “[T]he incident leading to the injury must be an ‘outgrowth’ of the employment ... ; the risk of tortious injury must be ‘inherent in the working environment’ ... or ‘typical of or broadly incidental to the [employer’s] enterprise.’ ” (Lisa M. v. Henry Mayo Newhall Memorial Hospital (1995) 12 Cal.4th 291, 298, internal citations omitted.)

Plaintiff fails to allege facts showing Doe was acting in the scope of his employment when he allegedly committed the underlying intentional torts. Plaintiff alleges as much only by conclusion. Because the complaint is devoid of facts that link Doe’s conduct to his employment, Plaintiff fails to state a vicarious claim against Defendants.

B. Third Cause of Action for Intentional Infliction of Emotional Distress

Plaintiff also fails to state a claim for intentional infliction of emotional distress.

“The elements of the tort for intentional infliction of mental distress are: (1) outrageous conduct by the defendant; (2) intention to cause or reckless disregard of the probability of causing emotional distress, (3) severe emotional suffering and (4) actual and proximate causation of emotional distress.” (Stoiber v. Honeychuck (1980) 101 Cal.App.3d 903, 921.)

A defendant’s conduct is “outrageous” when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. And the defendant must either intend his or her conduct to inflict injury or engaged in it with the realization that injury will result. Liability for intentional infliction of emotional distress does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities. Severe emotional distress is a high bar, requiring a demonstration of “emotional distress of such substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it. [Citation.]” (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-1051 [foregoing paragraph].)

Plaintiff's complaint describes an assault and battery and asserts negligence based on those intentional acts. But it does not contain facts severe enough to place his claims beyond that scope.

C. Fifth Cause of Action for Negligent Hiring, Supervision, or Retention

Plaintiff also fails to state a claim for negligent hiring, supervision, or retention.

A claim for negligent hiring, supervision, or retention of an employee requires the plaintiff to plead and prove that the defendant knew or should have known that an employee might injure the plaintiff in the course of his employment. (See *Phillips v. TLC Plumbing, Inc.* (2009) 172 Cal.App.4th 1133, 1139 ["[n]egligence liability will be imposed on an employer if it 'knew or should have known that hiring the employee created a particular risk or hazard' ".])

Plaintiff fails to allege facts showing Defendants were on notice of Doe's likelihood to commit the underlying assault.

D. Demurrer to Entire Complaint (incl. Fourth Cause of Action) for Uncertainty

Defendants also argue Plaintiff's complaint fails entirely for uncertainty because of inconsistencies between his prayer for relief and his causes of action. These inconsistencies are only evident for the first, second, and third causes of action, which are demurrable on other grounds. The uncertainty does not infect the whole complaint. Defendants mounted no individual challenge to the fourth cause of action, and it survives the demurrer for uncertainty. The demurrer is overruled as to the fourth cause of action.

V. CONCLUSION

Defendants Ralphs Grocery Company and The Kroger Company's demurrer is SUSTAINED with leave to amend as to Plaintiff's first, second, third, and fifth causes of action.

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Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the court will adopt the tentative as the final order, or take the matter off calendar at its discretion.